

**JUSTIFICATION & APPROVAL FOR OTHER THAN FULL AND OPEN COMPETITION
for SIMPLIFIED ACQUISITIONS OVER THE MICROPURCHASE THRESHOLD (See FAR
Part 2) UP TO SAT
(See FAR 13.106-1)**

Date: 20 FEB 2025

PR Number: 44012727

1. Nature and/or description of the item/service being procured and its intended use (include the anticipated cost):

The urgency of the repair project concerning the water control valve at Padre Island National Seashore. The existing water control valve, which is essential for filling the ground storage tank, is currently malfunctioning. This situation poses a significant risk to the entire water distribution system for the park. Current estimated cost of \$20,000.

2. Sole Source Justification rationale (Check one and explain below):

 Only one responsible source.

 X **Urgent and compelling circumstances exist.** Include critical delivery or performance dates, and when you became aware of the requirement. Provide a specific statement of the impact on Government operations, financial or otherwise, if the required delivery or performance dates are not met.

 Other _____

Explain:

The last remaining old plumbing at the Mile .5 facility failed on December 10, 2024. The primary water intake control valve malfunctioned and would not allow for the Park to refill the water ground storage tank. When the water in the tank drains that would cause the park to have to perform a Sanitization of the entire distribution system.

Identified a suitable replacement valve and supporting apparatus to restore the system back to an operational state. Work must be completed urgently to address a safety hazard. Currently, the only method available for filling the tank is through manual operation, which is not only inefficient but also unsustainable in the long term. This manual process increases the risk of water shortages, and contamination potentially impacting park operations and visitor services.

Given the critical nature of the water supply for both the park's infrastructure and its visitors, it is imperative that the replacement of the water control valve is expedited. Delays in this repair could lead to

the inability to provide adequate water supply for essential services and emergency situations.

3. Market Research. Please explain the results or why one was not performed. State whether any other offers were received or anyone expressed interest:

Due to the urgent need for valve replacement Park requested quotes from multiple contractors/vendors: SealBoss, MMCJ Services General Contractor, Larson Plumbing & Utility Company, Bestex plumbers, and MALEK .inc. Currently only received feedback from MALEK .inc, and they conducted a site visit to diagnose the replacement valve. No other offers were received, and no additional vendors expressed interest.

ATTACHMENT 2

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4. If this is a determination for sole source, the contracting officer certifies:

- a. Only one source is available, or urgent and compelling circumstances exist.
- b. The anticipated price will be determined fair and reasonable using the price analysis techniques described in FAR Part 13.106-3(a).

(Signature) NICHOLAS FLECK Digitally signed by NICHOLAS FLECK
Date: 2025.03.14 10:38:17 -05'00' (Date) _____

Type or Print Name: _____

Title:

(Signature)  Digitally signed by CRAIG BRYANT
Date: 2025.04.01 15:39:58 -04'00' (Date) _____

Type or Print Name: _____

Contracting Officer

Over \$50,000:(if applicable)

(Signature) _____ (Date) _____

Warranted Individual 1 Level Above Contracting Officer